SHINGIRAI MUCHINAPO
versus
ZI SHI STONE ZIMBABWE (PVT) LTD
and
L. BARADZI N.O
and
T. KASHIRI N.O
and
SECRETARY FOR MINES AND MINING DEVELOPMENT
and
MINISTER OF MINES AND MINING DEVELOPMENT
and
OFFICER COMMANDING ZRP CID MINERALS FAUNA AND FLORA UNIT, MASHONALAND EAST PROVINCE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 25 July 2025 & 13 January 2026

Adv L. Uriri with Miss T. Masaka, for Applicant
Miss L.N. Dzumbunu with V. Mhungu, for 1st Respondent
C. Matambo for 2nd to 6th ,Respondents

Urgent Chamber Application

TAKUVA J: This is an urgent chamber application for an interdict in terms of rule 60 (1) of the High Court Rules 2021. The relief sought is that of a provisional order.

The order is couched thus;

"TERMS OF THE FINAL ORDER SOUGHT

That you show cause to this Honorable Court why a final order should not be made in the following terms: -

1. The 1st, 2nd, 4th and 6th Respondents are hereby interdicted from interfering with Applicant's mining operations at Rudolphia B, Registration Number ME 904G pending the finalisation of an application for review filed under case No HCH 3284/25.
2. The 1st Respondent shall pay costs of this application on an attorney and client scale.

INTERIM RELIEF SOUGHT

Pending determination of this matter and on the return date the Applicant be and is hereby granted the following relief;

1. Execution of the 2nd Respondent's order of the 3rd of July 2025 be and is hereby suspended.

SERVICE OF PROVISIONAL ORDER

The Provisional Order together with all supporting documents shall be served on the Respondents or their legal practitioners by the Sheriff or Applicant's legal practitioners.

BACKGROUND FACTS

Yet again this matter arises from a mining dispute pitting the Applicant and the first Respondent. Applicant is the registered holder of a mining block of claims known as Rudolphia B, Registration Number ME 904G situated in Goromonzi while the first Respondent has a registered mining location covering the Applicant's block.

As a result of this over pegging a dispute arose between Applicant and the first Respondent. The second Respondent resolved the dispute and issued an injunction suspending all mining operations pending the final determination of the dispute. A hearing and a ground visit were conducted and the findings were that the first Respondent had pegged and registered its block on ground that was not open for pegging in terms of the Mines and Minerals Act [*Chapter 21:05*]. The injunction was automatically discharged by operation of law and Applicant continued with its operations. However, first Respondent noted an appeal against second Respondent's determination.

On 13 June 2025, the first Respondent made an application to the second Respondent for an injunction against Applicant's mining operations pending finalisation of the appeal. A hearing was set for 16 June 2025. At this hearing, the Applicant raised preliminary points including that the second Respondent was now *functus officio* and the lack of requisite jurisdiction since the Applicant had withheld his consent. The second Respondent declined to hear the application due to lack of jurisdiction.

Surprisingly on 3 July 2025 the second Respondent issued a determination suspending the Applicant's mining operations pending the finalisation of the appeal noted by the first Respondent. Applicant was not afforded an opportunity to be heard before his mining operation were suspended. Aggrieved by this decision, Applicant filed an application for

review against the second Respondent on 7 July 2025 under case No HCH 3284/25. The application is pending.

It is apparent that what has given rise to this application is the suspension of Applicant's mining rights under circumstances that Applicant feels are unlawful, irregular and prejudicial.

Applicant's Case

The following facts are common cause amongst Applicant, first and third Respondents;

(1) There is a determination of the 2nd June 2025 by the third Respondent which is now the subject of an appeal.
(2) The first Respondent made an application for an injunction to the third Respondent which was not determined since the Applicant withheld his consent.
(3) The second Respondent acting on the fourth Respondent's instructions issued an injunction on 3 July 2025 barring Applicant from operating.
(4) The fourth Respondent acted in terms of s341 (2) of the Mines and Minerals Act. In other words, he assumed the office of the Mining Commissioner when he issued the injunction see paragraph B of the first Respondent's opposing affidavit.
(5) The injunction was issued on the basis that there is an appeal to the fifth Respondent by the first Respondent see paragraph 4 of the third Respondent's opposing affidavit.
(6) The injunction was thus not issued on the basis of an application by the first Respondent and the parties were not called for a hearing by the fourth and second Respondent before the injunction was issued.

Applicant raised preliminary objections. The 1st is that first and third Respondent's opposing papers are irregular and invalid in that there is only an opposing affidavit without a notice of opposition. It was contended that a valid notice of opposition consists of a notice of opposition in terms of form No 24 together with one or more opposing affidavits. Reliance was placed on the following cases.,

Khan v *Muchenje & Anor* HH 126/13, *Young Goo Cho* v *Starlin Mau Mau & Anor* SC 3/05

Chenga v *Chikadaya & 3ORS*, SC 7/13 *Aristone Management Services* v *Econet Wireless Zimbabwe Ltd* SC 123/23

The second point *in limine* raised by the applicant is that the third Respondent's opposing affidavit bears two different dates in that the deponent took the oath on 11 July 2025 yet the Commissioner of Oaths commissioned the affidavit on 13 July 2025. It was submitted that the third respondent's opposing affidavit is

improperly before the court and must be expunged from the record. The Applicant urged the court to deal with the matter as an unopposed since there is no valid opposition.

The following are the points *in limine* raised by the first Respondent against the Applicant

(a) Incompetent relief

The first Respondent submitted that the Applicant has prayed for a final order. Applicant contends that this is incorrect.

(b) Jurisdiction

Again, Applicant contends that this is a mistaken understanding of the facts in that an appeal from a Mining Commissioner's Court lies with the High Court and not the Supreme Court in terms of s 36 of the Mines and Minerals Act.

(c) Constructive contempt

Applicant submitted that there is no basis for such an allegation as he stopped operations when he was served with the injunction. If the Mining Promotion Company is affected it showed litigate on its own as 1ST Respondent cannot litigate on behalf of Mining Promotion Company.

MERITS

On the merits, Applicant submitted that he has satisfied all the requirements for an interim interdict.

The first and third Respondent's cases

After arguing various *points in limine* as shown above, first Respondent submitted on the merits that the Applicant has no *prima facie* right in that they are mining on a ground not open for prospecting in terms of s 31 of the Mines and Minerals Act. Therefore, the right arises from an unlawful cause.

As regards the balance of convenience it was submitted that both entities have documents relating to the same mining location. One party should not be [permitted to conduct mining operations in the absence of the other. Therefore, if mining operations are halted, no-one will suffer harm. The second injunction was issued in terms of the Act and first Respondent complied with the injunction.

Analysis

The 1st *point in limine* relating to the invalidity of the first Respondent opposing affidavit is one which the court can use its discretion to condone non-compliance. See

Bonyview Estates (Pvt) Ltd v *Zimbabwe Platinum Mines (Pvt) Ltd & Anor* SC 58-18, where MAKARAU JA (as she then was) stated that, "Condonation is an indulgence granted when the court is satisfied that there is a good and sufficient cause for condoning non-compliance with the rules."

In *casu,* I accept the explanation by the first Respondent that there was an error with uploading and the Notice of opposition was omitted. It had been scanned and the error occurred on uploading. Since the Applicant has uploaded its Answering Affidavit and Heads of Argument no prejudice has been suffered by virtue of the omission. Further the omitted pages have been uploaded and now form part of the court record. The following comments by BHUNU JA in *Tendai Mashamanda* v *Bariadie Investments (Pvt) Ltd & Anor* SC 17/24, are apt;

> "Although legal practitioners are expected to proceed with due care and diligence in drafting legal documents at all material times the courts are inclined to relax the strict adherence to the rules on account that in an urgent application, the legal practitioners will be operating under extreme pressure due to the urgency of the matter."

In the present matter, the error is one that is condonable.

Equally so, the question of two dates on the opposing affidavit is not dispositive of the matter. It is accordingly dismissed.

As regards points *in limine* raised by the first Respondent, I am of the view that all of them are totally without merit. The relief is not incompetent for the simple reason that the Applicant seeks an order for the suspension of the second Respondent's injunction pending the return date. On the return date, the Applicant seeks an interdict pending the finalisation of the review application. The Applicant is therefore seeking the restoration of the *status quo ante* the impugned injunction – see *Muchinapo* v *G Dairai & Ors* HH 163/24.

In any event a draft order can still be amended in terms of r 59 (27) of the rules of court. See *Econet Wireless (Pvt) Ltd* v *Trust Co Mobile (Pty) Ltd & Anor* SC 43/13

In the result, this point is dismissed for lack of merit.

The argument that the High Court lacks jurisdiction is without merit. In terms of S. 361 of the Mines and Minerals Act, jurisdiction is bestowed on the High Court not the Supreme Court. In any event the pending matter is a review application and not an appeal. It is an application for review in terms of section 26 of the High Court Act. For these reasons, the ground is improperly taken and is hereby dismissed.

As regards contempt of court, this application has no bearing on the appeal noted to the 5th Respondent by the first Respondent. The Applicant is seeking not to be stopped from

operating on the basis of an illegal and irregular injunction. The question of Mining Promotion Company's Exclusive Prospecting Order was not a term of reference in proceedings before the third Respondent. The point *in limine* was improperly taken. It must accordingly fail.

REQUIREMENTS FOR AN INTERDICT.

It is trite that the requirements for an interdict are;

1. The right which is the subject matter of the main action the applicant seeks to attain by means of an interim relief is clear or if not clear is *prima facie* established though open to some doubt.
2. There is a well-grounded apprehension of irreparable harm to the Applicant if the interim relief is not granted and he ultimately succeeds in establishing his right,
3. The balance of convenience favours the granting of the interim relief, and
4. The Applicant has no other satisfactory remedy.

See Airfield Investments (Pvt) Ltd V Minister of Lands & Ors 2004 (1) ZLR 511 (S)

THE RIGHT

Quite clearly, the Applicant has more than a *prima facie* right as evidenced by the registration Certificate and the determination of 3 June 2025 which is extant. Applicant's Registration Certificate was not cancelled on the grounds that he pegged on ground not open for pegging. It is therefore still valid.

APPREHENSION OF HARM

The Applicant's Founding Affidavit spells out the harm he will suffer if the injunction continues to operate. He is likely to lose on production time and lose employees. Applicant will also suffer the damages associated with failure to pay for services such as security which will result in vandalism of the mine by invaders, vandalism of equipment and theft of ore and equipment of value.

At the heart of Applicant's contention is that he has been barred from operating on the strength of an irregular proceeding and decision. This is so because the injunction which is subject of the dispute was obtained unprocedurally and illegally. The moment the fourth Respondent assumed the office of a Mining Commissioner in issuing the injunction as agreed by the parties that the fourth Respondent acted in terms of s 341(2) of the Act, he was mandated to follow the procedure laid down in terms of s 354 of the Act, which

includes that there should be an application by an aggrieved party and service of the application on interested parties and the invitation for a hearing. Failure to comply with a mandatory course of action invalidates the thing done- see *The Garrat Trust* v *Creative Credit (Pvt) Ltd* SC 146/21

In *casu*, the second and fourth Respondents are administrative authorities in terms of s 3 of the Administrative Justice Act [*Chapter 10:28*]. In that, regard they are mandated to comply with the statutory duty to hear a party and allow him to make representations before an adverse decision is made. The injunction was clearly adverse in that it did not only suspend the Applicant's operations but also overturned the right to carry out operations which was expressly granted through the determination of the 3rd of June 2025 by the same office i.e. Mining Commissioner.

In *Mukwaira* v *Minister of Lands, Agriculture, Fisheries, Water and Rural Resettlement* SC 15/24, it was stated that "It is clear that from these subsections that the notice of the nature and purpose of the pending administrative action should be communicated to the person whose rights are to be adversely affected before such action is taken. This is intended to ensure that the person is given the opportunity to be heard as is in tandem with the *audi alteram partem* rule before the decision adverse to their rights and interests is taken."

What comes up clearly in this matter is that when third Respondent in his capacity as a Mining Commissioner declined to hear the injunction on 16 June 2025, the fourth Respondent (who had assumed the office of the Mining Commissioner) should not have heard the same application since he does not have appellate or review powers. In any event the letter by the fourth Respondent of 25 June 2025, clearly shows that the injunction was not issued based on an application but merely on an appeal which he was seized with. The third Respondent's decision in declining to entertain the application rendered the Mining Commissioner's office *functus officio*. This decision was communicated to both parties and the first respondent was advised to seek an injunction in the High Court. See *Chirambasukwa* v *Ministry of Justice* 1998 (2) ZCR 567(5) at 569 E – G, *Muchinapo* v *Dadirai & Ors* SC328/25.

BALANCE OF CONVINIENCE.

In my view the balance of convenience favors that the *status quo ante* the injunction be maintained. Applicant has been carrying out these operations for the past 5 years. Therefore, any stoppage will harm the applicant and not the first respondent which has

never been operating on the mining location. Further, on the record, the application for review has prospects of success resulting in the in the injunction being set aside. In other words, the probabilities lie heavily in favour of granting the interim relief sought.

ALTERNATIVE REMEDY

I take the view that *in casu,* there is an alternative remedy in that applicant cannot facilitate the urgent disposal of the appeal noted by the first respondent. Applicant cannot disobey the injunction meaning he cannot conduct any operations until the injunction is removed.

DISPOSITION

Applicant has shown that the order suspending his operations is patently irregular and the first respondent must not be allowed to continue to benefit from it. While it may be proper to order both parties to halt operations pending review, the court cannot turn a blind eye to the fact that the injunction used was obtained irregularly and unfairly. If the first respondent deserves to have Applicant's operations suspended pending the determination of its appeal, it must follow due process.

In the circumstances, the Court grants the following provisional order

TERMS OF THE FINAL ORDER SOUGHT

That you show cause to this Honorable Court why a final order should not be made in the following terms;

1. The first, second, fourth and sixth respondents are hereby interdicted from interfering with Applicant's mining operations at Rudolphia B, Registration No MF904G pending the finalization of an application for review filed under case No HCH 3284/25.
2. The first Respondent shall pay costs of this application on an attorney and client scale.

INTERIM RELIEF GRANTED

Pending determination of this matter and on the return day the Applicant be and is hereby granted the following relief;

1.Execution of the second Respondent's order of the 3rd of July 2025 be and is hereby suspended.

SERVICE OF THE PROVISIONAL ORDER

The Provisional order together with all supporting documents shall be served on the Respondents or their legal practitioners by the Sherriff or Applicants' legal practitioners.

TAKUVA J:.....

Farai & Associates Law Chambers, Applicant's legal Practitioners
Chasi Maguwudze Legal Practice, 1st Respondent's Legal Practitioners
Civil Division of Attorney General, 5th Respondent's Legal Practitioners
ZRP Legal Services, 6th Respondent's Legal Practitioners